

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM3
HON. Judge Erin Rowe
Date: 05/27/26

Court Room Rules and Notices

#	Case Name	Tentative
1	Fard – Trust (2020 – 01157766)	MOTION TO SET ASIDE Petitioner Farnaz Rahimi Kashani’s (Petitioner) Motion to Set Aside the Minute Order Dated March 12, 2026 Granting Respondent Richard Huntington’s Ex Parte Application (ROA 2261) and Any Resulting Order (ROA 2404) is DENIED. Pursuant to Code of Civil Procedure section 473(d) (section 473(d)), Petitioner seeks to set aside the court’s March 12, 2026 Minute Order granting an ex parte application filed by Respondent Richard Huntington. Petitioner argues she was not properly served with the ex parte application or supporting papers. Section 473(d) reads, in full: “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.” “In determining whether an order is void for purposes of section 473, subdivision (d), courts distinguish between orders that are void on the face of the record and orders that appear valid on the face of the record but are shown to be invalid through consideration of extrinsic evidence. ‘This distinction may be important in a particular case because it impacts the procedural mechanism available to attack the judgment [or order], when the judgment [or order] may be attacked, and how the party challenging the judgment [or order] proves that the judgment [or order] is void.’ [Citation.] [¶] An order is considered void on its face only when the invalidity is apparent from an inspection of the judgment roll or court record without consideration of extrinsic evidence. . . . If the invalidity can be shown only through consideration of extrinsic evidence, such as declarations or testimony, the order is not void on its face.” (<i>Pittman v. Beck Park Apartments Ltd.</i> (2018) 20 Cal.App.5th 1009, 1020–1021.) Petitioner’s motion to set aside relies on her declarations and other extrinsic evidence. Accordingly, the order is not void and may not be challenged under section 473(d).

[illegible]